

# **CV-26-003474 RIVERA, LUIS vs AMERICAN HONDA MOTOR CO INC – Defendant American Honda Motor Co. Inc’s Motion to Compel Arbitration – GRANTED.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: A party moving to compel arbitration bears the burden of establishing the existence of a written arbitration agreement. Once the moving party makes a prima facie showing, the burden shifts to the opposing party to produce evidence disputing the agreement's existence. Here, Defendant produced the Warranty Booklet containing the arbitration provision. The Court finds Defendant thereby satisfied its initial burden. (*Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158; *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 244; *Martinez v. BaronHR, Inc.* (2020) 51 Cal.App.5th 962, 967). The Court further finds the recent published decision in *Kostandian v. American Honda Motor Co., Inc.* (2026) 120 Cal.App.5th 872 controlling on the issues presented. *Kostandian* addressed the same Honda Warranty Booklet arbitration provision and concluded Honda satisfied its burden by producing the booklet and reciting the arbitration terms. Plaintiffs have not produced evidence sufficient to create a material factual dispute regarding the existence of the arbitration agreement. Plaintiffs' declarations state they were not informed about arbitration before signing their purchase documents and were not shown the Warranty Booklet before executing the sale contract. However, neither Plaintiff states that he or she never received the Warranty Booklet, received it only after delivery, or otherwise disputes receiving Honda's written warranty materials. Plaintiffs' complaint alleges receipt of Honda's written warranties and seeks relief based upon those warranties. Defendant correctly notes that Plaintiffs' claims arise directly from the warranty relationship governed by the Warranty Booklet and support the application of the Doctrine of Equitable Estoppel to Plaintiffs' claims herein. Equitable estoppel generically precludes a party from asserting rights he otherwise would have had against another when his own conduct renders assertion of those rights contrary to equity. (*Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209). The Court is unpersuaded by Plaintiffs' reliance on *Norcia*. As discussed in *Kostandian*, *Norcia* is distinguishable where, as here, the plaintiff's claims are founded upon the manufacturer's written warranty and the arbitration provision is contained within the warranty materials upon which the claims are based. (*Kostandian*, supra). The Court likewise rejects Plaintiffs' argument that the arbitration provision fails for lack of consideration. The arbitration provision imposes mutual obligations on both parties, broadly applies to claims by either side, and includes a bilateral agreement to arbitrate disputes arising out of the warranty relationship. Plaintiffs have not demonstrated the absence of consideration sufficient to invalidate the provision. Plaintiffs also fail to establish unconscionability. Any procedural unconscionability is minimal. The arbitration provision appears in the Warranty Booklet, first at page 3 of same and then at page 6, contains a conspicuous notice directing purchasers to the arbitration terms, and provides a 30-day opt-out procedure. Plaintiffs do not contend they exercised the opt-out right. Plaintiffs have also not established substantive unconscionability. The arbitration agreement incorporates AAA Consumer Arbitration Rules, allows the arbitrator to award available remedies, and requires Defendant to bear the majority of arbitration costs. Plaintiffs' concerns regarding discovery limitations are speculative and reflect characteristics of arbitration generally rather than any one-sided contractual term. The Court further rejects Plaintiffs' *Magnuson-Moss* and jury-trial-waiver arguments for the reasons set forth in Defendant's moving and reply papers. Plaintiffs' Complaint is not based on and Plaintiff's do not rely on the *Magnusson Moss Warranty Act*. Plaintiffs have not shown that federal warranty law renders this arbitration provision unenforceable, nor have they cited authority sufficient to invalidate the agreement on constitutional grounds. Plaintiff's claims are referred to arbitration and this matter is stayed pending the conclusion of said arbitration. (9 U.S.C.A. § 3; Civ. Proc. Code § 1281.4). A Case Status Review is set for April 9, 2027 at 8:30 a.m. in Dept. 21; all other dates are vacated. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

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The Court further rejects Plaintiffs' Magnuson-Moss and jury-trial-waiver arguments for the reasons set forth in Defendant's moving and reply papers. Plaintiffs' Complaint is not based on and Plaintiffs do not rely on the Magnuson-Moss Warranty Act. Plaintiffs have not shown that federal warranty law renders this arbitration provision unenforceable, nor have they cited authority sufficient to invalidate the agreement on constitutional grounds.

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